

**Amendments to Title 2, Article I of the Chickasaw Nation Code of Laws  
(Chickasaw Utility Authority)**

**WHEREAS,** in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

**WHEREAS,** in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

**WHEREAS,** Title 2, Article I of the Code of Laws of the Chickasaw Nation provides for the creation and operation of the Chickasaw Utility Authority, and

**WHEREAS,** in 1988, when the bylaws of the Chickasaw Utility Authority were adopted by the authority's board of trustees there was no Chickasaw Nation Code of Laws and, in subsequent years, those bylaws were inappropriately codified,

**NOW, THEREFORE, BE IT RESOLVED,** that the Chickasaw Tribal Legislature hereby approves the following amendments to Title 2, Article I, all other sections of Title 2, Chapter I to remain the same (additions are shown in red, deletions are stricken through):

**SECTION 2 - 1081.1**

**PLAN OF OPERATION.**

F. The purpose for which the Authority is organized is as follows:

1. To acquire, operate, maintain and promote utility systems, furnishing electric, gas, water and telephone services, sanitation services and any other services of like or similar nature to consumers regardless of where they may live or do business:

G. ~~It is intended that control and operations of each utility within the jurisdiction of the Authority shall be contracted to an existing chartered public utility company.~~ The following utility ~~utility~~ services shall be within ~~it's~~ the Authority's operational jurisdiction and may be expanded by board vote:

1. electricity:
2. gas;
3. water;
4. telephone; and
5. sanitation services.

Each approved utility management contract ~~becomes part of this plan of operation and~~ will be permanently filed for inspection at the ~~Nation's headquarters in Ada~~ Authority's main office.

## SECTION 2 - 1081.2

### GENERAL POWERS.

B. The business and affairs of the Authority shall be managed by a board of five (5) trustees, consisting of a chairman, vice chairman, secretary and two other members, which board shall exercise all the powers of the Authority except such as are by law, or this Code conferred upon or reserved to the Legislature: or to the Executive Department.

## SECTION 2 - 1081.3

### CHAIRMAN

The ~~Governor of the Nation~~ board of trustees shall ~~be designated~~ elect one from among themselves to serve a one-year term as Chairman of the Authority and ~~he~~ the Chairman shall:

1. Be the principal executive officer of the Authority and, unless otherwise determined by other members of the board of trustees, ~~shall~~ preside at all meetings of the board of trustees;

## SECTION 2 - 1081.5

### SECRETARY.

3. The safekeeping of the corporate Authority books and records and seal of the Authority and affixing the seal of the Authority to all documents, execution of which on behalf of the Authority under its seal is duly authorized in accordance with the provisions of these the Authority's bylaws;

4. Keeping on file at all times a complete copy of the ~~articles of incorporation~~ and by laws of the Authority containing all amendments thereto, which copy shall always be open to the inspection of any ~~tribal member~~ citizen of the Nation, and shall, at the expense of the Authority, furnish a copy of the bylaws and of all amendments thereto upon request; and

## SECTION 2 - 1081.6

### OTHER BOARD MEMBERS.

The other ~~two~~ four members of the board of trustees shall be appointed by the Governor from the Chickasaw Nation at large, and shall be confirmed by majority of the Legislature.

## SECTION 2 - 1081.7

### MANAGEMENT CONTRACTS.

All ~~management~~ contracts shall be approved first by the board and, upon proper board action, submitted to the Governor for his approval, by the Legislature and a Any provisions of such ~~management contract or~~ contracts shall take precedence over ~~these~~ the Authority's bylaws or any acts of the board of trustees. Any such contracts not approved by the Governor shall not be final and binding upon the Authority.

## SECTION 2 - 1081.8

### COMPENSATION.

The ~~powers, duties and~~ compensation of all trustees shall be fixed by the ~~Legislature~~ board and approved by the governor.



**SECTION 2 - 1081.13****MEETINGS.**

Meetings of the board of trustees may be called by board resolution, by the chairman, or by any three (3) trustees and it shall thereupon be the duty of the secretary to cause a notice of such meeting to be given as herein provided to each trustee. The board, the chairman, or the trustees calling the meeting, shall fix the date, time and place for the meeting, which shall be held within the Chickasaw Nation, unless all trustees consent to it being held in some other place, and all such information shall be included in the notice of the meeting. Regular monthly meetings may also be established by the board on pre-set dates. No official business shall be conducted if a quorum of three members or more is not established at any such board meeting.

**SECTION 2 - 1081.14****WAIVER OF NOTICE. (RESERVED).**

~~Any trustee may waive in writing any notice of a meeting required to be given by these bylaws. The attendance of a trustee at any meeting shall constitute a waiver of notice of such meeting by such trustee except in the case a trustee shall attend a meeting for the express purpose of objecting to the transaction of any business because the meeting shall not have lawfully been called or convened.~~

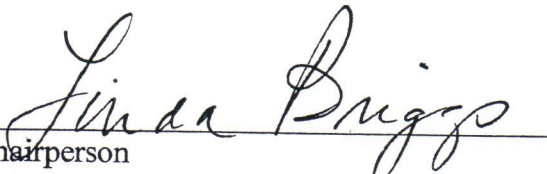
**SECTION 2 - 1081.15****RULES, AND REGULATIONS AND BYLAWS.**

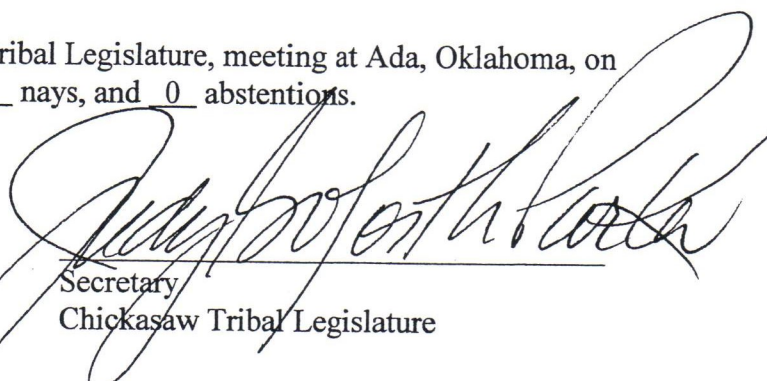
The board of trustees shall have the power to make and adopt such rules and regulations not inconsistent with law, or this Code, as it may deem advisable for the management and regulation of the business and affairs of the Authority by a majority vote of the board of trustees. The board of trustees may devise and adopt its own bylaws to control and regulate the affairs of the board.

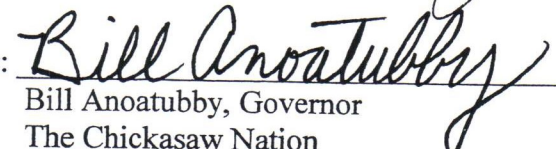
**SECTION 2 - 1081.16****AMENDMENTS (RESERVED).**

~~These sections may be altered, amended or repealed by the Legislature at any regular or special meeting, provided the notice of such meeting shall have contained a copy of the proposed alteration, amendment or repeal.~~

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 17, 2004, by a vote of 11 ayes, 0 nays, and 0 abstentions.

  
Chairperson  
Chickasaw Tribal Legislature

  
Secretary  
Chickasaw Tribal Legislature

Concur:   
Bill Anoatubby, Governor  
The Chickasaw Nation

Date: SEP 17 2004

**CHICKASAW TRIBAL LEGISLATURE**  
**Permanent Resolution Number 21-025**  
**Amendments to Title 2, Article I of the Chickasaw Nation Code of Laws**  
**(Chickasaw Utility Authority)**

**Explanation:** This resolution amends the section of the code dealing with the Chickasaw Tribal Utility Authority. When the authority was created in the late 1980s, there was no tribal code of laws. Since that time, the authority's own bylaws have been codified, which is improper. This resolution clarifies some of the language of the sections which should be codified and removes the language of some sections which should be included in the authority's bylaws and not in the statutes.

**Requested By:** Governor Bill Anoatubby

**Presented By:** Steve Woods, Chairman  
Legislative Committee